



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1200: ~~assured water supply; certificate; model.~~

S/E: bodies of water; effluent; landscaping

GRIFFIN FLOOR AMENDMENT

1. Clarifies that a body of water that is filled and refilled exclusively with effluent is exempt from prohibition, only if the body of water was constructed or substantial capital investment was made toward construction prior to December 31, 2030.
2. Stipulates that a body of water must be constructed in compliance with the aforementioned requirement and was used to convey noneffluent for landscape and recreational purposes between June 30, 2023 and June 30, 2026.
3. Modifies the allowed purposes of the water transported through the body of water from *other purposes* to *recreational purposes off the body of water*.
4. Modifies the water that is to be delivered and withdrawn from the body of water that is to be measured from the body of water from *the total volume of water to the volume of water by type of water*.
5. Specifies that the volume of effluent added to the body of water must be equal to or greater than the amount that is lost to seepage and evaporation.
6. Prohibits the amount of noneffluent delivered to the body of water from exceeding the total volume withdrawn for landscaping or recreational purposes.
7. Requires the effluent to be delivered to the end user before commingling with any other type of water, except as provided under current law.
8. Expands requirements of certain owners or operators of a body of water to include documentation that the body of water was used to convey noneffluent for landscape or recreational purposes between June 30, 2023 and June 30, 2026.
9. Clarifies that this legislation does not allow the use of groundwater to:
 - a. provide the initial fill of a body of water; or
 - b. meet seepage or evaporative loss of a body of water unless authorized under current law.
10. Makes technical and conforming changes.

GRIFFIN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1200
(Reference to NATURAL RESOURCES, ENERGY & WATER S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Section 45-132, Arizona Revised Statutes, is amended to
4 read:

5 45-132. Filling large bodies of water for landscape or
6 recreational purposes prohibited; exceptions;
7 preemption

8 A. Except as provided in subsection B of this section, in an active
9 management area established under chapter 2 of this title, a person shall
10 not use any water for the purpose of filling or refilling all or a portion
11 of a body of water.

12 B. This section does not apply to a body of water if any of the
13 following applies:

14 1. The body of water was filled before January 1, 1987. If the
15 surface area of the body of water is increased on or after January 1,
16 1987, this exception does not apply to the quantity of water that is
17 added.

18 2. The director has determined that substantial capital investment
19 has been made in the physical on-site construction of the body of water
20 before January 1, 1987. If the surface area of the body of water is
21 increased after it is initially filled, this exception does not apply to
22 the quantity of water that is added.

23 3. The body of water is located in a recreational facility that is
24 open to the public and THAT [IS] owned or operated by the United States,
25 this state, a city, town or county, a flood control district established
26 under title 48, chapter 21 or a multi-county water conservation district
27 established under title 48, chapter 22.

1 4. The body of water is filled and refilled exclusively with any
2 one or any combination of the following:

3 (a) Effluent [ONLY IF THE BODY OF WATER WAS CONSTRUCTED OR
4 SUBSTANTIAL CAPITAL INVESTMENT WAS MADE TOWARD CONSTRUCTION OF THE BODY OF
5 WATER BEFORE DECEMBER 31, 2030].

6 (b) Storm water runoff that is not subject to appropriation under
7 section 45-141.

8 (c) Poor quality water used pursuant to a permit issued under
9 subsections ~~C and~~ D AND E of this section.

10 (d) Groundwater withdrawn pursuant to a drainage water withdrawal
11 permit issued under section 45-519.

12 (e) Groundwater withdrawn in the first year of a temporary
13 dewatering permit issued under section 45-518.

14 (f) Groundwater withdrawn as part of a remedial action under title
15 49, chapter 2, article 5, including mitigation of a nonhazardous release
16 undertaken pursuant to an order issued by the department of environmental
17 quality pursuant to section 49-286.

18 (g) Water used pursuant to a permit for interim water use issued
19 under section 45-133.

20 (h) Surface water except central Arizona project water that, as
21 determined by the director, physically occurs at such times, in such
22 quantities or under such other circumstances that it cannot be physically
23 captured and beneficially used by any other holder of an appropriative
24 right.

25 5. The body of water is an integral part of a golf course that
26 complies with any applicable conservation requirements in the management
27 plan for the active management area adopted under chapter 2, article 9 of
28 this title.

29 6. The body of water is unsealed and is an integral part of an
30 underground storage facility for which the director has issued a permit
31 under chapter 3.1 of this title.

32 7. The body of water is a swimming pool that is owned and operated
33 by a hotel, motel, country club or resort and THAT has a surface area
34 equal to or less than forty-three thousand five hundred sixty square feet.
35 If a hotel, motel, country club or resort has more than one swimming pool,
36 only one of those swimming pools may have a surface area greater than
37 twelve thousand three hundred twenty square feet.

38 C. FOR ~~[BODIES]~~ [A BODY] OF WATER THAT ~~[ARE]~~ [WAS] CONSTRUCTED
39 BEFORE JANUARY 1, 2026 IN AN ACTIVE MANAGEMENT AREA [PURSUANT TO
40 SUBSECTION B, PARAGRAPH 4, SUBDIVISION (a) OF THIS SECTION] AND THAT ~~[ARE~~
41 ~~FILLED AND REFILLED WITH EFFLUENT]~~ [WAS USED TO CONVEY NONEFFLUENT FOR
42 LANDSCAPE OR RECREATIONAL PURPOSES BETWEEN JUNE 30, 2023 AND JUNE 30,
43 2026], A PERSON MAY USE THE BODY OF WATER AS A CONDUIT FOR TRANSPORTING
44 ANOTHER TYPE OF WATER FOR ~~[LANDSCAPING]~~ [LANDSCAPE] OR ~~[OTHER]~~
45 [RECREATIONAL] PURPOSES [OFF THE BODY OF WATER] BY ~~[COMINGLING]~~
46 [COMINGLING] THE EFFLUENT WITH THE WATER THAT THE PERSON USES FOR
47 ~~[LANDSCAPING]~~ [LANDSCAPE] OR ~~[OTHER]~~ [RECREATIONAL] PURPOSES ~~[THAT FLOWS~~
48 ~~THROUGH]~~ [OFF] THE BODY OF WATER IF THE OWNER OR OPERATOR OF THE BODY OF
49 WATER DOES ALL OF THE FOLLOWING:

1 1. USING MEASURING DEVICES THAT ARE APPROVED BY THE DIRECTOR:

2 (a) MEASURES THE ~~[TOTAL]~~ VOLUME OF WATER [BY TYPE OF WATER] THAT IS
3 DELIVERED TO AND WITHDRAWN FROM THE BODY OF WATER FOR ~~[LANDSCAPING]~~
4 [LANDSCAPE] OR ~~[OTHER]~~ [RECREATIONAL] PURPOSES IN ~~[A]~~ [EACH CALENDAR]
5 YEAR.

6 (b) MEASURES THE TOTAL VOLUME OF EFFLUENT THAT IS DELIVERED TO THE
7 BODY OF WATER IN ~~[A]~~ [EACH CALENDAR] YEAR.

8 2. ADDS A VOLUME OF EFFLUENT TO THE BODY OF WATER EACH [CALENDAR]
9 YEAR THAT IS EQUAL TO OR GREATER THAN ~~[AN]~~ [THE] AMOUNT THAT IS [LOST TO
10 SEEPAGE AND EVAPORATION FROM THE BODY OF WATER. THE AMOUNT LOST TO SEEPAGE
11 AND EVAPORATION SHALL BE] DETERMINED BY SUBTRACTING THE AMOUNT OF WATER
12 THAT IS WITHDRAWN FOR ~~[LANDSCAPING]~~ [LANDSCAPE] OR ~~[OTHER]~~ [RECREATIONAL]
13 PURPOSES FROM THE TOTAL AMOUNT OF WATER DELIVERED TO THE BODY OF WATER IN
14 THE CALENDAR YEAR. [THE AMOUNT OF NONEFFLUENT DELIVERED TO THE BODY OF
15 WATER MAY NOT EXCEED THE TOTAL VOLUME WITHDRAWN FROM THE BODY OF WATER FOR
16 LANDSCAPE OR RECREATIONAL PURPOSES. EXCEPT AS ALLOWED PURSUANT TO SECTION
17 45-468 OR ANY OTHER LAW, THE EFFLUENT MUST BE DELIVERED TO THE END USER
18 BEFORE COMMINGLING WITH ANY OTHER TYPE OF WATER.]

19 3. ON OR BEFORE MARCH 31 OF ~~[THE FOLLOWING]~~ [EACH] YEAR, REPORTS
20 [BOTH OF] THE FOLLOWING TO THE DIRECTOR:

21 (a) THE ~~[TOTAL]~~ VOLUME OF WATER THAT THE PERSON DELIVERED TO THE
22 BODY OF WATER IN THE [PRECEDING] CALENDAR YEAR [BY TYPE OF WATER].

23 ~~[(b) THE VOLUME OF EFFLUENT THAT THE PERSON DELIVERED TO THE BODY~~
24 ~~OF WATER IN THE CALENDAR YEAR.]~~

25 ~~[(c)]~~ [b] THE VOLUME OF WATER THAT THE PERSON WITHDREW FROM THE
26 BODY OF WATER FOR ~~[LANDSCAPING]~~ [LANDSCAPE] OR ~~[OTHER]~~ [RECREATIONAL]
27 PURPOSES IN THE [PRECEDING] CALENDAR YEAR.

28 [4. ON OR BEFORE JANUARY 1, 2028, PROVIDES DOCUMENTATION TO THE
29 DIRECTOR THAT THE BODY OF WATER WAS USED TO CONVEY NONEFFLUENT FOR
30 LANDSCAPE OR RECREATIONAL PURPOSES BETWEEN JUNE 30, 2023 AND JUNE 30,
31 2026. THE DOCUMENTATION MUST CONTAIN ALL OF THE FOLLOWING:]

32 [(a) ANNUAL REPORTS THAT THE OWNER OR OPERATOR PREVIOUSLY FILED WITH
33 THE DIRECTOR.]

34 [(b) A REPORT THAT IS AFFIXED WITH A SEAL BY A REGISTERED CIVIL
35 ENGINEER, THAT DESCRIBES THE DISTRIBUTION SYSTEM OF THE BODY OF WATER AND
36 THAT INCLUDES A MAP AND NARRATIVE DESCRIPTION OF THE SOURCE OF THE WATER
37 AND THE LOCATION AND TYPE OF USE OF THE WATER.]

38 [(c) AN AFFIDAVIT OF AN OWNER OF THE BODY OF WATER THAT AFFIRMS
39 COMPLIANCE WITH THIS SUBSECTION.]

40 ~~C.~~ D. A person who seeks to use poor quality groundwater to fill
41 or refill all or a portion of a body of water shall apply to the director
42 for a permit to use the groundwater for that purpose. The director may
43 issue a permit if the applicant demonstrates that all of the following
44 apply:

45 1. The applicant otherwise has a right to use the proposed source
46 of groundwater for the proposed purpose.

1 2. The groundwater because of its poor quality cannot be used for
2 another beneficial purpose at the present time and it is not economically
3 feasible to treat and transport the groundwater and use it for another
4 beneficial purpose.

5 3. The withdrawal of the groundwater is consistent with the
6 management plan and achievement of the management goal for the active
7 management area.

8 ~~D.~~ E. A permit issued pursuant to subsection ~~E~~ D of this section
9 may be issued for a period of up to thirty-five years. The director shall
10 determine the duration of the permit on the basis of the estimated life of
11 the source of poor quality groundwater and the potential for future
12 beneficial use. The director shall monitor the use of groundwater
13 pursuant to the permit and shall terminate the permit if any of the
14 conditions for issuance of the permit no longer applies. A permit may be
15 renewed subject to the same criteria used in granting the original permit.

16 [F. UNLESS AUTHORIZED PURSUANT TO SECTION 45-133, SUBSECTION C OF
17 THIS SECTION DOES NOT ALLOW THE USE OF GROUNDWATER FOR EITHER OF THE
18 FOLLOWING PURPOSES:

19 1. TO PROVIDE THE INITIAL FILL OF A BODY OF WATER.

20 2. TO MEET SEEPAGE OR EVAPORATIVE LOSS OF A BODY OF WATER.]

21 ~~F.~~ [F.] [G.] This section preempts all municipal and county laws,
22 charters, ordinances, rules and regulations relating to the use of any
23 water to fill or refill all or a portion of a body of water, except that
24 this section does not preempt a law, charter, ordinance, rule or
25 regulation that has previously been adopted, passed or enacted or is
26 subsequently adopted, passed or enacted if the law, charter, ordinance,
27 rule or regulation is more restrictive than this section."

28 Enroll and engross to conform

29 Amend title to conform

GAIL GRIFFIN

1200FloorGRIFFIN.docx

06/09/2026

11:45 AM

C: CT

130PMZYAI